

Ajit Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 15 September 2014 · Criminal Misc. Writ Petition No. 16107 of 2014 · s.135 FIR not quashed; CrPC 41/41-A; compounding under Code 2005

HEADNOTE

An FIR under s.135 of the Electricity Act, 2003 that discloses a cognizable offence will not be quashed. If arrest is contemplated in an offence not entailing sentence of more than seven years, the police must comply with CrPC ss.41(1)(b) and 41-A. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Ajit Singh filed a criminal miscellaneous writ petition in the Allahabad High Court seeking to quash FIR dated 16 August 2014, registered as Case Crime No. 432 of 2014 under Section 135 of the Electricity Act, 2003 at Police Station Mardah, District Ghazipur. He had not been arrested. Counsel submitted that the alleged offence could not attract a sentence of more than seven years, so arrest should not be mechanical, and that the offence was compoundable. The State appeared through the Government Advocate.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

s.135 FIR quash, arrest safeguards, compounding

HOLDING

Where an FIR under s.135 of the Electricity Act, 2003 discloses a cognizable offence, it will not be quashed. Arrest, if at all, in an offence not entailing sentence of more than seven years must be dealt with in compliance with CrPC ss.41(1)(b) and 41-A. If the offence is compoundable, the accused may seek that remedy under the Electricity Supply Code, 2005. ¶ 3-6

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy

Quash refused because the s.135 FIR disclosed a cognizable offence; arrest had not been made, so only a prospective CrPC 41(1)(b)/41-A direction issued; compounding left to Supply Code, 2005 if available. ¶ 3-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ALLEGED S.135 OFFENCE WAS COMPOUNDABLE ON THESE FACTS

Petitioner may seek compounding under the Electricity Supply Code, 2005 if the offence is compoundable. ¶ 5